

**Judge Mosbarger – Law & Motion – Wednesday, September 23, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1-2. 22CV01639 C D v. COUNTY OF BUTTE

EVENTS: (1) Defendant County of Butte's Motion for Summary Judgment, or in the Alternative, Motion for Summary Adjudication

*(2) Case Management Conference *Special Set*

As an initial note, it appears that an unredacted version of the Reply was filed in the Court's public file. The Court would be inclined to order a redacted version of the Reply be filed with the unredacted version submitted under seal should the parties so request.

Defendant County of Butte's ("Defendant" herein) Request for Judicial Notice is granted. However, while the Court is taking judicial notice of the existence of the identified court filings (Request for Judicial Notice Nos. 11-27), the fact that the statements reflected in those filings were made, and any legal effect that properly follows from the filings, the Court is not taking judicial notice of the truth of disputed factual assertions, opinions, estimates, or characterizations contained in those documents. Plaintiff C.D.'s ("Plaintiff" herein) Evidentiary Objections are therefore granted, in part.

Plaintiff's Request for Judicial Notice is granted.

As to Issues Two and Three, the Defendant argues that *Welfare & Institutions Code* §328 was approved by California's governor on September 20, 1976, and filed with the Secretary of State on September 21, 1976 [See, Undisputed Material Fact ("UMF") Nos. 77-78; Defendant's Request for Judicial Notice ("RJN") Exhibits 1-2]. The allegations/alleged report by William about "odd things" happening in the Watkins' home was in 1973. [UMF Nos. 15, 17-25]. Therefore, at the time of the alleged report by William, Defendant did not owe any duty to Plaintiff investigate under *Welfare & Institutions Code* §328. The Court notes that Plaintiff does not address this issue in the Memorandum of Points and Authorities in Opposition, as pointed out in the Reply [See Reply at Pg. 2, Lines 12-15.] However, in the separate statement, Plaintiff does argue that the issue is disputed in part to the extent UMF Nos. 77-78 imply the duties were not in effect prior to 1976. Bobby Cagle, Plaintiff's expert on the topics of child welfare and social work, outlined some of the history of child welfare practices and standard of care relevant to the time period when the abuse took place in this matter. He states, "The County's argument that no protective duty existed prior to 1976 because one of the relevant statutes was "enacted" in 1975 is a mischaracterization of child welfare history....During the 1970s, "the fundamental requirements for documenting allegations of sexual abuse, ensuring child-safety through medical assessment, and maintaining accurate records for the Juvenile Court were widely recognized and taught as essential components of the social work profession, consistent with the Child Welfare League of America (CWLA) standards and prevailing practice models of that era." Thus, the substance of this statute was in effect during the relevant time period of abuse. While "the substance" of a statute may have been in effect at the time of the alleged abuse, the statute was not and therefore the Defendant cannot be liable under a statute that did not exist at the time.

Additionally, Defendant argues that *Welfare & Institutions Code* §328 was not in effect at the time M.D. made *her* alleged report and therefore as above, Defendant did not owe Plaintiff a duty to investigate under this statute at the time of M.D.'s report because the statute did not exist. The issue here is whether there is a triable issue of fact as to the date of M.D.'s report. Based on the evidence submitted, the Court concludes that the report was made prior to September 20, 1976 [Plaintiff's Supplemental Responses to Defendant's Form Interrogatories [See Exhibit I to IOE] No. 17.1, RFA No. 7 – "Plaintiff is further informed and believes that when M.D. was in sixth grade she reported to the social worker assigned to Plaintiff and M.D., Ms. Getchy (spelling unknown) that their foster father had raped M.D. in the foster father's truck, but Ms. Getchy accused Plaintiff of lying about the abuse, and nothing was done about the abuse, and Plaintiff and M.D. were left in the foster home, and the abuse continued"; RJN Exhibit 12 – "Melody will be entering the 6th grade at Helen Wilcox School this year [dated July 29, 1975]"; and RJN Exhibit 11 – "Melody will enter the 7th grade at Palermo School [dated July 1976]."] The only conclusion to be made is that M.D.'s report was made prior to the enactment of *Welfare & Institutions Code* §328 and there is no triable issue of material fact in this regard.

Thus, Plaintiff has failed to raise a triable issue of material fact as to whether Defendant owed Plaintiff a duty under *Welfare & Institutions Code* §328 when William and M.D. made their reports and the Motion for Summary Adjudication as to Issues Two and Three is GRANTED.

Based on the above, the Court need not rule on the remaining issues relating to *Welfare & Institutions Code* §328 (Issues Four through Nine); the "even if *Welfare & Institutions Code* §328 was in effect" arguments, because the Court finds *Welfare & Institutions Code* §328 was not in effect during the relevant time period and on that basis there can be no liability under that Code Section.

"Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused." *Government Code* §820.2. In relation to *Welfare & Institutions Code* §16501, the language of the statute, specifically "as are considered necessary", prescribes a discretionary duty and entitles the Defendant to discretionary immunity under *Government Code* §820.2. The Motion for Summary Adjudication as to Issues Ten and Eleven are GRANTED.

During the relevant time period, *Welfare & Institutions Code* §16504 provided, "[p]rotective services shall be extended to every child in need of protection, regardless of family income" [RJN Exhibit 3]. The Court finds that *Welfare & Institutions Code* §16504 does not impose a "mandatory duty" within the meaning of *Government Code* §815.6 because triggering the statutory response requirements ("protective services") depends on discretionary determinations (finding a child is "in need of protection"). The Motion for Summary Adjudication as to Issue Twelve is GRANTED.

The plain language of *Penal Code* §11161.5 imposes a duty to cross-report only where an “observation of the minor” has “injuries which appear to have been afflicted upon him other than by accidental means.” [RJN Exhibit 4; Former *Penal Code* §11161.5(a), pp. 3675, 3680-3681]. Plaintiff concedes the alleged social worker did not observe any injuries on her [See Memorandum of Points and Authorities in Opposition at Page 17:9-13: “The County argues that this section is inapplicable because the social worker did not observe any injuries on Plaintiff, herself. However, this argument runs contrary to the purpose of the statute and is misleading about the circumstances of this case. Though the social worker did not see physical signs of abuse on Plaintiff, she saw them on M.D., from whom she received a direct report of sexual abuse by their shared foster father.]; thus, Plaintiff has failed to establish a triable issue of material fact exists and the Court concludes that Defendant did not owe or breach a duty to Plaintiff to cross-report any such injury under former *Penal Code* §11161.5. The Motion for Summary Adjudication as to Issue Thirteen is GRANTED.

To create a mandatory duty, the regulation must command, rather than merely authorize or permit, that a specific action be taken. It must use explicit, forceful, and mandatory language (such as “shall” or “must”) rather than permissive language (such as “may” or “should”). However, even if mandatory language is present, if the underlying function requires a social worker or county agency to exercise professional judgment or discretion, it does not create a mandatory duty for liability purposes. See, *State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 348–349.

In regard to California Department of Social Services (“CDSS”) Regulation 30-103, the Court agrees with the Defendant that CDSS Regulation No. 30-103 merely requires child welfare agencies to extend “child protective services” but affords agencies wide discretion as to how and when to carry out those services. Plaintiff does not dispute this fact but instead cites a declaration from her expert opining that protective services were not adequately rendered in this instance. [RJN Exhibit 5]. This is a “normative or qualitative debate over whether [the duty] was adequately fulfilled” (see, *de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 260-61), thus further demonstrating this provision did not impose a mandatory duty which could subject Defendant to liability under *Government Code* §815.6. The Motion for Summary Adjudication as to Issue Fourteen is GRANTED.

Likewise, in regard to CDSS Regulation 30-104, that Regulation provided in part, “[t]he county welfare department shall receive every referral from a public or private agency or from a person having reasonable cause to believe that the welfare of the child is being endangered, shall assess its appropriateness, and shall take whatever action is considered necessary to protect the child and correct the situation.” [RJN Exhibit 5]. The Court finds that this regulatory language did not impose a mandatory duty as to how which actions a social worker must take to protect the child; rather, it afforded discretion to take actions which the social worker deemed necessary to do so, and thus it does not impose a mandatory duty which could subject Defendant to liability under *Government Code* §815.6. The Motion for Summary Adjudication as to Issue Fifteen is GRANTED.

Regulation No. 30-105 provided, “[p]rotective services for children shall be provided through a specialized staff structure,” and, where feasible, “county welfare departments shall develop specialized units.” The regulation further provided, where a caseload does not justify a specialized unit, there shall be “specialized caseloads.” [RJN Exhibit 5]. A party moving for summary judgment or summary adjudication is not required to conclusively negate an element of the plaintiff’s cause of action. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855. Instead, a moving defendant can carry its initial burden of production by presenting evidence showing that the plaintiff does not possess, and cannot reasonably obtain, the evidence needed to establish at least one necessary element of the cause of action. *Id.* Defendant has done so here. The Court finds that Plaintiff’s Fourth Amended Complaint contains no allegations regarding Defendant’s specialized staffing structure, or whether services were provided in specialized caseloads or specialized units. There is similarly no evidence that Defendant did not establish such a structure or that any alleged failure to establish such a structure caused Plaintiff’s claimed damage. Thus, the Court concludes that Plaintiff cannot meet her burden of proving such a structure did not exist given that internal staffing records from the relevant time period have not been maintained in the ordinary course of business. [See Ex. T to Defendant’s Index of Exhibits (IOE”), Defendant’s Responses to Plaintiff RPDs, No. 29 – 22, 31-33]. Plaintiff has failed to establish a triable issue of material fact exists as to this issue and the Motion for Summary Adjudication as to Issue Sixteen is GRANTED.

Likewise, CDSS Regulation No. 30-206 provided, “[t]he county department . . . shall develop and maintain on a continuous basis a plan for service for each . . . family or child who requires any of the services identified in Section 30-201.” The regulation further outlines various requirements for the case plans. For instance, “[t]he individual plan shall be based on a formal evaluation.” [RJN Exhibit 6]. The Court finds that Plaintiff cannot meet her burden of proving there was no service plan in place for Plaintiff given that Defendant has not maintained Plaintiff’s CPS files in the ordinary course of business. [See Ex. L to the IOE, Mittag Decl. ¶¶5-6]. Plaintiff has failed to establish a triable issue of material fact exists as to this issue and the Motion for Summary Adjudication as to Issue Seventeen is GRANTED.

The Court notes as an initial matter that Plaintiff does not address Defendant’s arguments with respect to CDSS Regulation Nos. 30-213, 30-301, 30-302, 30-303, 30-307, and 30-405, and thus concedes that the first cause of action for negligence fails under these theories. However, the Court also provides the following:

CDSS Regulation No. 30-213 provided, “[t]he county welfare director shall establish Child Support Services which shall meet the requirements of Sections 30-210 seq and Sections 42-500 with respect to AFDC [Aid to Families with Dependent Children].” Further, “[a] specific plan for the administration of Child Support Services . . . shall be included in the overall county plan.” [RJN Exhibit 7]. The Court finds that Plaintiff cannot meet her burden of proving Defendant did not establish such services or a plan to provide those services, as policy and procedure documents from that time period have not been maintained in the ordinary course of business. [See Ex. T to the IOE, County’s Responses to Plaintiff’s Supp. RPDs, No. 24.] Plaintiff has failed to establish a triable

issue of material fact exists as to this issue and the Motion for Summary Adjudication as to Issue Eighteen is GRANTED.

CDSS Regulation No. 30-301 provided, “[c]hildren who are under 18 years of age, who require care, and who cannot remain in their own homes, shall be provided temporary or long-term 24-hour care in licensed facilities . . . Services to children in out-of-home care shall include, but not be limited to, placement, care, supervision, adjustment, and discharge.” [RJN Exhibit 8]. The Court finds that this regulation did not outline specific actions which must be taken in specifically defined circumstances. Rather, the regulation afforded discretion in determining when children cannot remain in their own homes and what services may be provided to such children. Thus, the Court concludes that this regulatory language did not impose a mandatory duty as to how which actions a social worker must take to protect the child; rather, it afforded discretion to take actions which the social worker deemed necessary to do so, and thus it does not impose a mandatory duty which could subject Defendant to liability under *Government Code* §815.6. The Motion for Summary Adjudication as to Issues Nineteen and Twenty are GRANTED.

CDSS Regulation No. 30-302 provided, “[w]here AFDC in foster care is requested and no other agency is providing a placement service, the county shall assist the responsive relative or person by providing placement services.” [RJN Exhibit 8]. The Court finds that there is no evidence AFDC was ever requested after Plaintiff’s placement in the Watkins home or that this provision was ever triggered. Further, Plaintiff does not have, nor can she reasonably obtain, evidence such a provision was ever triggered and breached given that her case file has not been maintained in the ordinary course of business. [See, Ex. L to the IOE, Mittag Decl. ¶¶5-6]. Plaintiff has failed to establish a triable issue of material fact exists as to this issue and the Motion for Summary Adjudication as to Issue Twenty-One is GRANTED.

CDSS Regulation No. 30-303 provided a definition of the term “out-of-home services” and the purpose of those services. [RJN Exhibit 8]. The Court finds that this regulation did not outline specific affirmative actions which must be taken under a specific set of circumstances. Thus, the Court concludes that this regulatory language did not impose a mandatory duty as to how which actions a social worker must take to protect the child; rather, it afforded discretion to take actions which the social worker deemed necessary to do so, and thus it does not impose a mandatory duty which could subject Defendant to liability under *Government Code* §815.6. The Motion for Summary Adjudication as to Issue Twenty-Two is GRANTED.

CDSS Regulation No. 30-307 defines “children for whom the County is responsible for providing placement plans.” [RJN Exhibit 8]. Here, Plaintiff’s juvenile file has not been maintained in the ordinary course of business. [See, Ex. L to the IOE, Mittag Decl. ¶¶5-6]. Thus, Plaintiff does not have, nor can she reasonably obtain, evidence that Defendant did not provide a placement plan for her. Plaintiff has failed to establish a triable issue of material fact exists as to this issue and the Motion for Summary Adjudication as to Issue Twenty-Three is GRANTED.

CDSS Regulation No. 30-405 provided a County Welfare Department shall “provide help to individuals and families to . . . Obtain medical care in emergency situations and deal with social problems associated with medical emergencies.” [RJN Exhibit 8]. Here, the Court finds that there is no evidence Defendant ever had notice Plaintiff was in need of emergency medical services and failed to obtain the care. Plaintiff has failed to establish a triable issue of material fact exists as to this issue and the Motion for Summary Adjudication as to Issue Twenty-Four is GRANTED.

In regard to the arguments relating to common law negligence, the Court is not persuaded by Defendant’s argument that Plaintiff disavowed her common law negligence claim based on a meet and confer letter exchanged between counsel in relation to the filing of the Second Amended Complaint in this action. [See Ex. K to the IOE]. A government entity cannot be held liable for common law negligence. *Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 897. However, a public entity can be held vicariously liable under *Government Code* §815.2 for the common law negligence of its employees acting within the scope of their employment. See *Bradford v. State of California* (1973) 36 Cal.App.3d 16, 19. Plaintiff has plead vicarious liability [See Fourth Amended Complaint at ¶55] and Defendant has failed to establish no triable issue of material fact exists in this regard. The Motion for Summary Adjudication as Issue Twenty-Five is DENIED.

The Court finds that there is a triable issue of material fact as to whether Defendant is entitled to discretionary immunity under *Government Code* §820.2, for any alleged negligent investigation of M.D.’s abuse allegations and William’s alleged suspicions. Pursuant to *Caldwell v. Montoya* (1995) 10 Cal.4th 972, where the Supreme Court held that *Johnson v. State of California* (1968) 69 Cal.2d 782 “precludes a finding of immunity solely on grounds that the [employee’s duty] is ‘discretionary’”—rather, it requires that “the specific conduct giving rise to the suit involved an actual exercise of discretion, i.e., a conscious balancing of risks and advantages.” *Id.* at p. 983; See also, *D.G. v. Orange County Social Services* (2025) 108 Cal.App.5th 465. Here, Defendant has failed to present evidence sufficient to establish no triable issue of material fact exists as to whether the Defendant social worker’s investigation and conclusion included a “conscious balancing of the risks and benefits” and the Motion for Summary Adjudication as Issue Twenty-Six is DENIED.

Code of Civil Procedure §340.1(a) provides in relevant part that “[i]n an action for recovery of damages suffered as a result of childhood sexual assault, the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority or within five years of the date the plaintiff discovers or reasonably should have discovered that psychological injury or illness occurring after the age of majority was caused by the sexual assault, whichever period expires later...” *Code of Civil Procedure* §340.1(c) provides further that “[a]n action described in paragraph (2) or (3) of subdivision (a) shall not be commenced on or after the plaintiff’s 40th birthday unless the person or entity knew or had reason to know, or was otherwise on notice, of any misconduct that creates a risk of childhood sexual assault by an employee, volunteer, representative, or agent, or the person or entity failed to take reasonable steps or to implement reasonable safeguards to avoid acts of childhood sexual assault. For

purposes of this subdivision, providing or requiring counseling is not sufficient, in and of itself, to constitute a reasonable step or reasonable safeguard. Nothing in this subdivision shall be construed to constitute a substantive change in negligence law.” The Court agrees with Plaintiff’s interpretation of this Statute that under the foregoing provisions, Plaintiff is authorized to bring this action under Code of Civil Procedure §340.1 because Plaintiff has alleged that (and the Court finds a triable issue of material fact as to whether) Defendants “knew or had reason to know, or was otherwise on notice, of any misconduct that creates a risk of childhood sexual assault by an employee, volunteer, representative, or agent” or “failed to take reasonable steps or to implement reasonable safeguards to avoid acts of childhood sexual assault.” [See, UMF Nos. 19-25, 49, 55, 61-64, 67-75, 82-84; AUMF Nos. 12-23]. The Motion for Summary Adjudication as Issue Twenty-Seven is DENIED.

In regard to Issue One – the Motion for Summary Judgment on the First Cause of Action for Negligence – the Court finds a triable issue of material fact as to whether Defendant breached its duty under vicarious liability and whether Defendant is entitled to discretionary immunity under *Government Code* §820.2 in relation thereto, as discussed in detail above, and as such, the Motion for Summary Judgment is DENIED.

Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks.

Additionally, the Court continues the Case Management Conference on September 23, 2026 to November 18, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

3-4. 22CV01862 D, M v. COUNTY OF BUTTE

EVENTS: (1) Defendant County of Butte’s Motion for Summary Judgment, or in the Alternative, Motion for Summary Adjudication

*(2) Case Management Conference *Special Set*

Defendant County of Butte’s (“Defendant” herein) Request for Judicial Notice is granted. However, while the Court is taking judicial notice of the existence of the identified court filings (Request for Judicial Notice Nos. 11-27), the fact that the statements reflected in those filings were made, and any legal effect that properly follows from the filings, the Court is not taking judicial notice of the truth of disputed factual assertions, opinions, estimates, or characterizations contained in those documents. Plaintiff C.D.’s (“Plaintiff” herein) Evidentiary Objections are therefore granted, in part.

Plaintiff’s Request for Judicial Notice is granted.

As to Issues Two and Three, the Defendant argues that *Welfare & Institutions Code* §328 was approved by California’s governor on September 20, 1976, and filed with the Secretary of State on September 21, 1976 [See, Undisputed Material Fact (“UMF”) Nos. 77-78; Defendant’s Request for Judicial Notice (“RJN”) Exhibits 1-2]. The allegations/alleged report by William about “odd things” happening in the Watkins’ home